

Smt. Indu Chawala v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 25 April 2012 · Writ-C No. 20160 of 2012 · **Writ disposed; consider connection application with indemnity bond within three months**

HEADNOTE

On a writ for a new or restored electricity connection without the landlord's NOC, the Division Bench recorded that clause 4.4 of the U.P. Electricity Supply Code, 2005 permits supply on an indemnity bond, and disposed of the petition directing the licensee to intimate that requirement and consider the application afresh, preferably within three months.

FACTUAL SUMMARY

Smt. Indu Chawala and another sought a writ directing sanction of a new electricity connection or release of an earlier connection in her name. They claimed to have filed all documents and fees and completed formalities under the U.P. Electricity Supply Code, 2005, except the landlord's no-objection certificate. The distribution licensee's counsel submitted that clause 4.4 of the 2005 Code permitted supply of energy without that NOC if an indemnity bond was taken.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

new connection without landlord NOC; indemnity bond

HOLDING

Clause 4.4 of the U.P. Electricity Supply Code, 2005 permits the licensee, in the absence of the landlord's no-objection certificate, to supply energy on an indemnity bond. The Court did not grant or refuse the connection: it directed the licensee to intimate the indemnity-bond and other requirements under the Code and to consider the petitioners' application afresh, preferably within three months of production of a certified copy of the order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT TO A NEW OR RESTORED CONNECTION ON THE MERITS

Application left to the licensee to consider afresh after indemnity-bond and other formalities; no mandamus to connect. ¶ 1